

CLOUD INFRASTRUCTURE & OPERATIONS

Service Level Agreement & Incident Policy

Last Revised: 2026-09-12 v1.0-SLA

0.0 Preamble & Service Scope

IN PLAIN ENGLISH

This Service Level Agreement (SLA) guarantees that your hosted websites, databases, virtual private servers (VPS), dedicated bare-metal nodes, and edge network routing maintain 99.9% monthly availability. If our core infrastructure fails to meet this high standard, you are eligible for monetary service credits applied directly to your monthly invoice.

This Service Level Agreement ("SLA") constitutes a binding operational schedule incorporated into the Master Terms and Conditions of **Sheernox Technology Group**, a sole proprietorship registered in the Province of British Columbia, Canada, having its official registered office at 1-1885 Grasslands Blvd, Kamloops, BC, V2B 0B8, Canada ("Sheernox", "we", "us", or "our"). This Agreement applies to all active, paid subscribers ("Client", "Customer", "you") utilizing Sheernox cloud hosting, managed compute instances, dedicated bare-metal servers, Anycast DNS, edge CDN transit, and associated internet infrastructure solutions.

This SLA defines our quantitative operational availability metrics, our technical support triage commitments, the formal procedure for claiming downtime compensation, and the express legal boundaries of our infrastructure performance liability.

1.0 99.9% Monthly Uptime Commitment

1.1 Availability Standard

Sheernox warrants that all production hosting hypervisors, bare-metal server network uplinks, storage arrays, and authoritative DNS clusters shall maintain an aggregate **Monthly Uptime Percentage of not less than 99.9%** during any given monthly billing cycle.

1.2 Monthly Uptime Mathematical Calculation

Monthly Uptime Percentage is calculated on a calendar-month basis using the following industry-standard formula:

$$\text{Monthly Uptime \%} = [(\text{Total Scheduled Minutes in Month} - \text{Downtime Minutes}) / \text{Total Scheduled Minutes in Month}] \times 100$$

For the purposes of this calculation, "Downtime" is defined as a verifiable state of continuous packet drop, hypervisor crash, or total network unreachability exceeding sixty (60) consecutive seconds, measured by Sheernox's multi-region external telemetry nodes (including UptimeRobot, Datadog, and internal hypervisor ping probes).

1.3 Application-Layer Exceptions

Downtime measures raw server, hypervisor, and network transit layer availability. Unreachability resulting from Customer code errors, WordPress PHP fatal errors, un-indexed MySQL queries stalling worker pools, expired SSL certificates managed by Customer, or Customer firewall configuration lockouts does not constitute qualifying Downtime under this SLA.

2.0 Incident Severity Levels & Support Response Targets

Technical incidents submitted through our official client portal at <https://my.sheernox.com> or routed to support@sheernox.com are triaged according to the severity matrix below:

Severity Level	Incident Definition & Impact	Initial Response Target	Coverage Window
2.1A Priority 1 (P1) Critical Emergency	Complete host, hypervisor, or network node failure. Customer production service is completely offline or critical data is inaccessible to public traffic.	< 15 Minutes	24/7/365 Continuous Active Triage
2.1B Priority 2 (P2) High Degradation	Severe performance degradation, persistent high packet loss (> 25%), or secondary service failure (e.g., outgoing SMTP queue stall, database replica desync).	< 60 Minutes	24/7/365 Priority Queue
2.1C Priority 3 (P3) Normal / Impairment	Non-critical administrative disruption, control panel error, DNS record sync delay, or staging environment outage with production unaffected.	< 4 Hours	Standard Business Hours (08:00–20:00 PST)
Priority 4 (P4) Low / General	General technical inquiries, billing inquiries, quota upgrade requests, architecture advice, or routine DNS propagation questions.	< 12 Hours	Standard Business Hours (08:00–18:00 PST)

**Initial Response Target indicates the elapsed time from ticket submission to active written triage by a qualified systems engineer.*

3.0 Service Credit Calculation Schedule

IN PLAIN ENGLISH

If our monthly uptime drops below 99.9%, you receive monetary credits based on the tiered schedule below. If uptime drops below 90% in any calendar month, you receive a 100% full credit for that month's service fee.

In the event that Sheernox fails to achieve the 99.9% uptime commitment during a calendar month, Customer shall be eligible to receive a non-refundable Service Credit calculated as a percentage of the Customer's net recurring monthly subscription fee for the affected service:

Monthly Verified Uptime	Cumulative Monthly Outage Duration	SLA Credit Percentage
99.9% – 100.0%	0 to 43 minutes 12 seconds	Standard Baseline (0% Credit)
99.0% – 99.89%	43m 13s to 7 hours 18 minutes	10% Monthly Service Credit
95.0% – 98.99%	7h 19m to 36 hours 0 minutes	25% Monthly Service Credit
90.0% – 94.99%	36h 1m to 72 hours 0 minutes	50% Monthly Service Credit
< 90.0%	Greater than 72 hours Downtime	100% Monthly Service Credit

4.0 Claims Procedure & Forfeiture Conditions

4.1 Claim Submission Requirements

To receive a Service Credit under this SLA, Customer must submit a formal credit request via the client portal (<https://my.sheernox.com>) or by written notice to support@sheernox.com within **thirty (30) calendar days** following the end of the calendar month during which the outage occurred.

Each credit claim must include:

- a. Customer account username and primary billing email address.
- b. Identifier(s) of the affected service (e.g., Domain Name, VPS hostname, or Dedicated Server IP).
- c. Dates, exact timestamps (including timezone, preferably UTC or PST), and duration of the claimed outage.
- d. Outage logs, external monitor traceroutes, or HTTP error status codes corroborating the incident.

4.2 Verification & Credit Application

Sheernox engineers will evaluate the submitted telemetry logs against our internal hypervisor, SNMP network interface, and edge router logs within ten (10) business days. Upon verification, the calculated credit will be applied as an account credit against Customer's subsequent monthly invoice in Canadian Dollars (CAD). Service Credits cannot be redeemed for cash, refunded, or transferred between distinct legal accounts.

4.3 Forfeiture for Account Delinquency

Customer forfeits all entitlement to SLA credits if Customer's billing account is overdue, past due, suspended for non-payment, or under active investigation for violations of our Acceptable Use Policy (AUP) at the time of the incident or claim submission.

5.0 Scheduled & Emergency Maintenance Windows

5.1 Scheduled Maintenance Windows

To ensure hypervisor security, apply kernel live-patches, and upgrade edge switching hardware, Sheernox conducts scheduled maintenance. Standard maintenance windows occur between **01:00 and 05:00 Pacific Standard Time (PST)** on Tuesdays and Thursdays.

Sheernox provides Customer with at least **seventy-two (72) hours advance notice** via email and our portal status dashboard prior to initiating scheduled maintenance that is expected to result in service interruptions.

5.2 Emergency Critical Maintenance

In the event of a zero-day hardware vulnerability, critical Linux kernel exploit, active power infrastructure hazard, or imminent physical security threat, Sheernox reserves the right to execute Emergency Maintenance with expedited notice or without prior notice. Sheernox will endeavor to notify affected customers as soon as technically practicable.

5.3 Maintenance Excluded from Downtime

Any downtime occurring within scheduled maintenance windows, or during justified emergency security patching lasting fewer than one hundred and twenty (120) minutes, is strictly excluded from Monthly Uptime calculations.

6.0 SLA Exclusions & Force Majeure Events

The 99.9% uptime commitment and service credit schedule do not apply to any performance failure, downtime, or network unreachability resulting from:

- a. **6.1A Force Majeure Events:** Acts of God, atmospheric disturbances, wildland fires, earthquakes, municipal power substation collapse, armed conflict, civil unrest, labor disputes, or statutory governmental embargoes.
- b. **6.1B Tier 1 Upstream Transit Cuts:** Severing of subsea or trans-continental fiber optic lines beyond Sheernox's multi-homed BGP border router control.
- c. **6.1C Volumetric DDoS Overwhelming Mitigation Capacity:** Denial of Service attacks exceeding Sheernox's upstream multi-gigabit automated scrubbing capacity (e.g., volumetric floods exceeding 500 Gbps), during which traffic blackholing is implemented to preserve global infrastructure integrity.
- d. **6.1D Customer System Administration:** Actions, misconfigurations, kernel panics, bad firewall rules (e.g., `iptables -F`), database deadlocks, or unpatched application code executed by Customer or Customer's authorized users.

- e. **6.1E AUP Enforcement Actions:** Suspension or termination of services resulting from network abuse, phishing, spam transmission, copyright violations, or breach of the Acceptable Use Policy.
- f. **6.1F Beta, Test, or Unmanaged Services:** Services explicitly designated in billing as "Beta", "Development", "Staging", "Unmanaged Bare-Metal", or free promotional tiers.

7.0 Sole & Exclusive Remedy & Aggregate Caps

Statutory Limitation of Remedy

Under British Columbia law, this section sets forth Customer's exclusive monetary recourse for any failure of server uptime, network availability, or infrastructure performance.

7.1 Sole and Exclusive Remedy

The Service Credits set forth in Section 3 constitute Customer's **sole and exclusive remedy** for any failure of Sheernox to meet the uptime, response time, or performance warranties contained in this Agreement. Under no circumstances shall Customer be entitled to consequential, incidental, indirect, punitive, or loss-of-profit damages arising out of infrastructure downtime.

7.2 Maximum Monthly Credit Cap

The total cumulative Service Credits awarded to Customer in any single calendar month shall under no circumstances exceed **one hundred percent (100%)** of the total recurring subscription fee paid by Customer for the specific affected service during that calendar month.

7.3 British Columbia Venue & Statutory Alignment

This SLA is governed by the laws of the Province of British Columbia and the federal laws of Canada. Any disputes arising out of the interpretation or enforcement of this SLA shall be resolved exclusively by the competent courts of British Columbia sitting in the City of Kamloops, or via expedited commercial arbitration under the Vancouver International Arbitration Centre (VanIAC) rules.